

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #16	CCRB Case #: 201604745	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Wednesday, 05/25/2016 11:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/25/2017	Precinct: 48
Date/Time CV Reported Thu, 05/26/2016 2:50 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/02/2016 11:01 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Darrell Lowe	31849	955099	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Stephanie Castillo	30685	953737	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Darrell Lowe	Discourtesy: Police Officer Darrell Lowe spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Darrell Lowe	Off. Language: Police Officer Darrell Lowe made remarks to § 87(2)(b) based upon gender.	B . Unsubstantiated
C . POM Darrell Lowe	Abuse: Police Officer Darrell Lowe damaged § 87(2)(b)'s property.	C . Substantiated
D . POM Darrell Lowe	Force: Police Officer Darrell Lowe used physical force against § 87(2)(b)	D . Alleged Victim Uncooperative
E . POM Darrell Lowe	Discourtesy: Police Officer Darrell Lowe gestured discourteously toward § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 26, 2016, § 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau (Board Review 01). This complaint was received by the CCRB on June 2, 2016. On May 25, 2016, at approximately 11:10 p.m., PO Darrell Lowe and PO Stephanie Castillo of the 48th Precinct responded to a domestic incident at § 87(2)(b) in the Bronx. The following allegations resulted:

PO Darrell Lowe spoke discourteously and made remarks to § 87(2)(b) based upon gender (Allegation A and B). PO Darrell Lowe damaged § 87(2)(b)'s property by kicking her door (Allegation C). PO Darrell Lowe used physical force against § 87(2)(b) (Allegation D). It is also alleged that PO Darrell Lowe gestured discourteously towards § 87(2)(b) as he exited § 87(2)(b) in the Bronx (Allegation E).

This case has two videos as video evidence; a SnagIt of both videos has been placed below. Please note that the full video of Video 1 can be found in Board Review 2 and the transcription of Video 1 can be found in Board Review 3. Please note that the full video of Video 2 can be found in Board Review 04, and the transcription can be found in Board Review 05.



2016-10-03_14-42-06.mp4

Video 1 shows NYPD officers responding to § 87(2)(b) in the Bronx.



2016-10-03_10-54-12.mp4

Video 2 shows FDNY responding to § 87(2)(b) in The Bronx.

There is a concurrent investigation into this incident with the NYPD's Bronx Investigations Unit. As of the submission of this report, the result of this investigation is not yet available.

§ 87(2)(g)

Mediation and Criminal and Civil Histories

- This case was eligible for mediation and was rejected by § 87(2)(b) § 87(2)(b)

- As of October 5, 2016, no Notice of Claim has been filed by § 87(2)(b) in regard to this incident (Board Review 06). This report was submitted pending the results of any notice of claim filed in regard to any property damage at § 87(2)(b) in the Bronx submitted on October 7, 2016 (Board Review 07).
- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- This is the first case filed by or involving § 87(2)(b) (Board Review 10), and the first involving § 87(2)(b) (Board Review 11).
- PO Darrell Lowe has been a member of service for 3 years and has had 21 allegations pleaded against him. Of those 21 allegations, 9 have been substantiated. PO Lowe was also cited for other misconduct in CCRB 201600739.
 - In CCRB 201600739, a force allegation, a strip-search allegation, and premises entered and/or searched allegation, a frisk allegation, a search of person allegation, and a stop allegation were substantiated against PO Lowe. The Board recommended charges against him for each substantiated allegation, for which the NYPD disposition and penalty are still pending as of this writing. In CCRB 201600739, PO Lowe was also cited for § 87(2)(g), § 87(4-b) providing a false official statement.
 - In CCRB 201601121, two strip-search allegations were substantiated against PO Lowe. The Board recommended formalized training for each. The NYPD disposition and penalty are still pending as of this writing.

§ 87(2)(b) was named by § 87(2)(b) as a victim in this case. The investigation contacted § 87(2)(b) eight times via telephone and four times via mail from June 23, 2016, to August 12, 2016. § 87(2)(b) provided a telephone statement on June 28, 2016, but failed to provide a sworn statement. On October 3, 2016, an online search of the New York City Department of Corrections website revealed that § 87(2)(b) was not incarcerated when contact attempts were being made to him.

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Findings and Recommendations

Allegation A-Discourtesy: Police Officer Darrell Lowe spoke discourteously to § 87(2)(b)

Allegation B- Offensive Language: Police Officer Darrell Lowe made remarks to § 87(2)(b)

based on gender.

§ 87(2)(g) In her CCRB statement, § 87(2)(b) (Board Review 12) alleged that when PO Lowe informed her that § 87(2)(b) and § 87(2)(b) had “squatters’ rights” and could therefore not be removed from the apartment, she asked PO Lowe to leave her home since he could not assist her. § 87(2)(b) said, “Okay, if they don’t have to leave, and I have to deal with this, then you have to go. They have squatters’ rights, you don’t.” § 87(2)(b) acknowledged using profanity while speaking with PO Lowe. PO Lowe in response said, “I don’t give a fuck, that’s your fucking problem. When I assist the situation I will leave.” Soon after, § 87(2)(b) decided to call 911 before the situation escalated any further, and requested that additional officers to respond to remove PO Lowe from her home. PO Lowe became visibly upset when he heard this conversation and said, “Seriously? You calling the cops on me?” § 87(2)(b) replied, “Yes, because you don’t want to leave.” PO Lowe then said, “Well that’s some shit. Bitch calls for help and then don’t want it.”

PO Lowe (Board Review 13) stated that he informed § 87(2)(b) that she could not eject § 87(2)(b) and § 87(2)(b) out the apartment because it would be considered an unlawful eviction. § 87(2)(b) became irate, and called 911 in response. PO Lowe testified that he could not remember saying, “I don’t give a fuck, that’s your fucking problem. When I assist the situation I will leave” to § 87(2)(b) when she asked him to leave the apartment. He also could not recall saying, “Well that’s some shit. Bitch calls for help and then don’t want it.” PO Lowe denied using the words, “fuck” or “bitch” while speaking with § 87(2)(b)

PO Castillo (Board Review 14) denied hearing PO Lowe make any of the alleged statements.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that

Allegation A and B be closed as *Unsubstantiated*.

Allegation C- Abuse of Authority: Police Officer Darrell Lowe damaged § 87(2)(b)s property.

It is undisputed that PO Lowe kicked § 87(2)(b)s door, thereby causing the door to be damaged. § 87(2)(g)

§ 87(2)(b) (Board Review 12) said while on the phone with the 911 operator, she said, “PO Lowe is refusing to leave, and everyone has already left the premises.” The 911 operator informed § 87(2)(b) that a sergeant would be on the way. Once § 87(2)(b) told PO Lowe that his sergeant was on the way, PO Lowe, and PO Castillo exited the apartment. § 87(2)(b) slammed her door behind them, and locked it. She could not recall how far away PO Lowe was from the door, but was certain she did not hit him with the door. Immediately after she closed the door, PO Lowe kicked the door. The bottom of § 87(2)(b)s apartment door had a dent at the bottom, and the lock was destroyed as a result, thereby causing the FDNY to respond to the location because the damage was so extensive that it prevented occupants from exiting the home. § 87(2)(b) did not provide any proof of damage to the investigation.

The video footage of this incident (Board Review 02) contains the following evidence: At the 1:57 minute mark, § 87(2)(b) and § 87(2)(b) exit the apartment. They appear to be having a conversation. At the 2:00 minute mark, PO Castillo exits the apartment. At the 2:01 minute mark PO Lowe exits the apartment; both feet are in frame. At the 2:02 minute mark, PO Lowe is outside the apartment with both feet in frame. PO Lowe lifts his right leg up, and at the 2:03 minute mark, he kicks the door behind him. At the 2:04 minute mark, PO Lowe and PO Castillo walk towards the building exit and they both look back at the door.

PO Lowe (Board Review 13) said, “When I was leaving the house, she had her hand on my back and shoulder, almost trying to push me out.” § 87(2)(b) continued to be “threatening” to PO Lowe, and PO Castillo because she was unsatisfied with their response—specifically the fact that they could not remove § 87(2)(b) and § 87(2)(b) from the apartment. As PO Lowe walked out of the apartment, § 87(2)(b) tried to close the door on him. He claimed that § 87(2)(b) slammed the door which hit the back of his left foot, and as a reaction he kicked the door with his right foot. He did not know which part of the door he made contact with. PO Lowe said, “It was not intentional. It was a reaction to make sure my foot was not going to be stuck, or hurt in the door.” PO Lowe stated he sustained a “non-visible bruise” on the heel of his left foot, which caused pain. He did not fill out any paperwork in regards to this because his injuries were not serious enough to report. PO Lowe was not aware if the apartment door was damaged as a result of his kick. He was not aware of any damage to the door until he was interviewed by IAB, two months after the incident.

PO Lowe was re-interviewed on October 6, 2016 (Board Review 15). When asked about his previous statement that § 87(2)(b) had pushed him out of the apartment, PO Lowe stated

that this action is not depicted in the footage because it occurred inside the apartment and therefore not in camera view from the angle provided. PO Lowe stated that the 1:56 minute mark shows his foot being stuck in the doorway as he was exiting the apartment. At the 2:02 minute mark, PO Lowe said that he stopped because § 87(2)(b) kept pushing him with the door the entire time, which is why his body was “bladed.” PO Lowe also stated that this pushing action cannot be seen in camera view. He stated that at the 2:02 minute mark there is “some hesitation from § 87(2)(b) continuing to close the door on him.” The slam of the door to his shoulder and back are not in frame. PO Lowe said that he does not see the door make contact with his back from the 2:01 minute mark to the 2:04 minute mark. PO Lowe (Board Review 15) said he looked back at the apartment door at the 2:04 minute mark to make sure the door was closed, and was not aware of any damage during this time.

PO Castillo (Board Review 14) testified that when § 87(2)(b) and § 87(2)(b) exited the apartment, she walked directly behind them. As she walked out the door she heard yelling, and a slam on the door. PO Castillo stated that when § 87(2)(b) slammed the apartment door, PO Lowe just walked out. PO Castillo did not hear any loud noise once the door was slammed. PO Castillo did not hear any sounds consistent with someone kicking the door after § 87(2)(b) slammed the door. She also could not see if PO Lowe kicked the door because he was behind her

Patrol Guide Procedure 200-02 (Board Review 16) states that it is the mission of New York City Police Department to protect the property of all citizens of New York City in performance of their duties.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation C** be closed as **Substantiated**.

Allegation D- Force: Police Officer Darrell Lowe used physical force against § 87(2)(b)

§ 87(2)(b) provided a brief phone statement in which he alleged force by PO Lowe; however, he never provided a sworn statement to the CCRB as noted above. § 87(2)(b) (Board Review 17) said that as he walked towards the exit of § 87(2)(b), he heard PO Lowe kick his apartment door. Once he heard PO Lowe kick the door, he turned around to see what was going on. PO Lowe began walking towards the exit at this time, and pushed § 87(2)(b) towards the wall. PO Lowe then walked out of the building.

§ 87(2)(b) (Board Review 12) said when PO Lowe kicked the door; she heard § 87(2)(b) say, “Yo, what did you just do to my door?” When § 87(2)(b) heard § 87(2)(b) say this, she said, “Don’t you dare say anything, just stay quiet” to § 87(2)(b) through the window. § 87(2)(b) later told § 87(2)(b) that in response, PO Lowe pushed him out of the way, and continued to walk out the building. However, she did not witness this action.

§ 87(2)(b) (Board Review 18), who did not provide a sworn statement, testified that he exited the apartment at the same time as § 87(2)(b) and did not allege this. The video footage obtained from the Bronx Investigations did not contain any of the alleged force.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation D** be closed as ***Victim Uncooperative***.

Allegation E-Discourtesy: Police Officer Darrell Lowe gestured discourteously towards

§ 87(2)(b) (Board Review 12) said that as PO Lowe and PO Castillo exited § 87(2)(b), and returned to their vehicle, she yelled through the window, “You lucky there are bars on this window, and I can’t hit you with nothing, because I would throw a can at you and what are you going to do? Come in my house and arrest me? You can’t. You asshole, you locked me in my house.” PO Lowe in response, smiled, waved his middle finger, and returned inside his vehicle. PO Lowe and PO Castillo then drove off.

PO Lowe (Board Review 13) denied hearing § 87(2)(b) make any statements through the window as he walked to his patrol vehicle, and denied waving his middle finger at § 87(2)(b). PO Castillo (Board Review 14) denied seeing PO Lowe wave his middle finger at § 87(2)(b) and denied doing so.

The investigation was able to obtain the 911 call made by § 87(2)(b) during the incident (Board Review 19). This call does not contain any of the alleged statements § 87(2)(b) said she made to PO Lowe. Additionally, she made no mention of this alleged discourteous gesture.

§ 87(2)(g)

it is recommended that **Allegation E** is closed as *Unsubstantiated*.

§ 87(4-b), § 87(2)(g)

Squad: 16

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date